

		rather than to compensate the plaintiff. In this, it is akin to punitive damages.”].) A plaintiff may not recover both civil penalties <i>and</i> punitive damages “based upon substantially the same conduct.” (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 226 [striking punitive damages award where plaintiff also recovered civil penalties under Civil Code section 1794 because “in their effect <i>both</i> constituted punitive damages].) It seems unlikely that the Legislature intended for a plaintiff to be able to recover an unspecified amount of punitive damages under subsection (a), when it expressly provided for civil penalties not to “exceed two times the amount of actual damages,” under subsection (c). Thus, the Motion is granted with leave so Plaintiff can allege the correct facts required for punitive damages against a corporate entity and to clarify that these damages are only sought in the fraud claim. Defendant is ordered to serve notice. Case Management Conference Continued to 11-2-2026 at 9:00 a.m.
6	Kelson vs. Marriott International, Inc. 2021-01213506	Motion for an Order to Show Cause Regarding Dismissal Pursuant to CCP 583.410 Court will hear argument.
7	Long Affair Carpet and Rug, Inc. vs. Morgan	Motions to Compel Further Responses to Form/Special Interrogatories and Production Before the Court is Cross-Defendant Long Affair Carpet and Rug, Inc. dba LA Carpet Motins to compel further responses and documents from Defendant and Cross-Complainant Lauren Morgan as to Special

2023-01333968	Interrogatories, Set One, Nos. 86, 89, 92, 95, 98, 101, 104, 107, 110, 113, 119 and 120, Form Interrogatories - Construction, Set One, Nos. 305.1, 305.3, 309.1 and 313.1, Form Interrogatories - General, Set One, Nos. 7.1, 7.2, 9.1, 12.2 and 12.3, and Requests for Production of Documents, Set One, Nos. 37, 38, 39 and 45. <u>Merits</u> 1. <u>Interrogatories</u> A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under Code of Civil Procedure section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) With respect to interrogatories, the burden of showing good cause does not exist. (<i>Coy v. Superior Court</i> (1962) 58 Cal.2d 210, 220-221.) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 541 [“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.”].) On August 3, 2026, Morgan served further verified responses to every request identified in the three interrogatory motions. She contends that the Motions are therefore moot. On Reply, however, LA Carpet identifies specific requests that remain nonresponsive, specifically: Special Interrogatory No. 120, Form Interrogatory (Construction) Nos. 305.1(d) and 309.1(c), and Form Interrogatories (General) Nos. 7.1(d), 7.2(c), and 9.1(c). These all involve damages claims in the Cross-Complaint. At this stage in the litigation, Morgan must identify the scope of her damages. In answering interrogatories, a party must furnish information available from sources under the party's control: “[A party] cannot plead ignorance to information which can be obtained from sources under his control.” (<i>Deyo v. Kilbourne</i> (1978) 84
---------------	--

Cal.App.3d 771, 782; *Regency Health Services, Inc. v. Sup.Ct. (Settles)* (1998) 64 Cal.App.4th 1496, 1504.)

Her responses to these damage-requests are evasive and non-responsive as to damages. She asserts incorporates the D'Ambra Construction proposal of \$103,650.00, but then says that she "does not adopt that figure as a calculation in this response". Thus, the Court grants the Motions as to these remaining requests.

2. Documents

Code of Civil Procedure section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.220.) An agreement to comply must be rather specific as to what is agreed to. It must state that the production and inspection will be allowed (in whole or in part); and that the documents or things in the demanded category that are in the responding party's possession, custody, or control will be produced. (Code Civ. Proc., § 2031.220.) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Here again, on August 3, 2026, Morgan served further verified written responses to every request identified in the documents motion. She contends that the Motion is therefore moot.

On Reply, however, LA Carpet advises the Court that no documents have actually been produced.

Thus, the Motion is granted as to the production of all responsive documents.

Morgan is therefore ordered to serve supplemental verified responses without objections to Special Interrogatory No. 120, Form Interrogatory (Construction) Nos. 305.1(d) and 309.1(c), and Form Interrogatories (General) Nos. 7.1(d), 7.2(c), and 9.1(c) within 20 days of notice of this Order.

Morgan is also ordered to serve all responsive documents to Nos. 37, 38, 39 and 45 within 20 days of notice of this Order.

		<u>Sanctions</u> LA Carpet is awarded total sanctions of \$2,520.00, comprised of the modest amount of \$630 per Motion, against Morgan. Within 30 days of the notice of ruling, Morgan shall pay Defendant a total \$2,520.00 to Bremer Whyte Brown & O’Meara LLP. LA Carpet is ordered to serve notice.
8	Pendleton vs. Ghost Digital 2023-01371092	Motion for Leave to File Amended Complaint Plaintiff Brett Pendleton’s Motion For Leave To Amend Complaint is granted. California Rules of Court, rule 3.1324, requires a motion to amend include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading (Cal. Rules of Court, rule 3.1324(a)), and a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) Under Code of Civil Procedure section 473, subdivision (a)(1), “[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 488.) The Court finds Plaintiff has complied with Rule 3.1324. The motion is supported by a declaration from Plaintiff’s counsel, and it includes a copy of the proposed amended pleading. By the amendment, Plaintiff